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Case Number: 26PSCV01704 Hearing Date: August 5, 2026 Dept: 6

CASE NAME: Santino Medlin-Medina v. Mehar Singh Badesha

Defendant Mehar Singh Badesha's Motion to Strike Portions of Complaint

TENTATIVE RULING

The Court GRANTS Defendant Mehar Singh Badesha's Motion to Strike Portions of Complaint and hereby STRIKES the following portions of the Complaint with 20 days' leave to amend:

1. Page 4, line 6 through Page 6, line 5, including paragraphs 12 through 24, in their entirety; and
2. Prayer for Relief, paragraph 3 on Page 6, line 11, "3. For punitive damages according to proof at the time of trial".

Defendant is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an auto accident case. On May 12, 2026, plaintiff Santino Medlin-Medina (Plaintiff) filed this action against defendant Mehar Singh Badesha (Defendant) and Does 1 to 50, alleging one cause of action for negligence.

On July 2, 2026, Defendant moved to strike portions of Plaintiff's Complaint. On July 20, 2026, Plaintiff opposed the Motion. On July 28, 2026, Defendant replied to Plaintiff's Opposition.

LEGAL STANDARD

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(2).) "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Id., § 436.)

PRELIMINARY ISSUES

"A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense." (Cal. Rules of Court, rule 3.1322, subd. (a).) Defendant's Notice of Motion fails to comply with this requirement, but instead seems to specify the portions sought to be stricken in the memorandum of points and authorities. (Notice of Motion to Strike, 1:26-28; Motion, 5:12-19.) The Court admonishes Defendant to comply with the California Rules of Court going forward.

DISCUSSION

Meet and Confer

Per Code of Civil Procedure section 435.5, subdivision (a), Defendant was required to meet and confer in person, by telephone, or by video conference before bringing this motion to strike. (Code Civ. Proc., § 435.5, subd. (a).) Defendant failed to do so. (Kearney Decl., ¶ 5.) Nevertheless, the Court may not deny a motion to strike for failure to adequately meet and confer. (Code Civ. Proc., § 435.5, subd. (a)(4).) The Court admonishes Defendant to comply with the Code of Civil Procedure going forward.

Punitive Damages

A claim for punitive damages is subject to a motion to strike when the allegations fail to rise to the level of malice, oppression, or fraud necessary under Civil Code section 3294. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 64.) Allegations of intoxicated driving by themselves are insufficient to support claims for punitive damages. (Dawes v. Superior Ct. (1980) 111 Cal.App.3d 82, 90 (Dawes).)

Defendant moves to strike Plaintiff's prayer for punitive damages and related allegations on the ground that the Complaint fails to plead ultimate facts giving rise to exemplary damages. Defendant characterizes the action as a routine motor vehicle collision and contends that, although the Complaint alleges Defendant was "under the influence of alcohol and/or otherwise impaired," it offers no factual allegations confirming that Defendant consumed alcohol, was impaired, or exceeded the legal limit, and notes there is no DUI charge, citation, prosecution, or chemical test result. Defendant argues that Civil Code section 3294 requires specific facts establishing malice, fraud, or oppression, that conclusory or formulaic allegations are insufficient, and that malice requires despicable conduct carried out with a willful and conscious disregard for the safety of others. Defendant further asserts that negligence, even gross negligence, cannot support punitive damages, and distinguishes Taylor v. Superior Court on the ground that the defendant there had actually been convicted. Defendant contends that allowing an unsupported punitive damages claim to remain is prejudicial and requests that the caption reference, paragraphs 12 and 13, the prayer, and related allegations of malice, oppression, and despicable conduct be stricken.

In opposition, Plaintiff argues that the Complaint does not allege a routine collision but instead alleges that Defendant drove under the influence of alcohol in violation of Vehicle Code section 23152, subdivision (a), entered a controlled intersection against a steady red signal in violation of Vehicle Code section 21453, subdivision (a), and struck the vehicle in which Plaintiff was a passenger. Plaintiff contends these allegations plead ultimate facts sufficient to support punitive damages under Civil Code section 3294 because they show conduct carried on with a willful and conscious disregard for the rights and safety of others, and that at the pleading stage the court does not weigh evidence, resolve factual disputes, or decide whether the clear-and-convincing standard is ultimately met. Plaintiff argues that California pleading standards do not require evidentiary detail such as chemical test results or the full DUI investigation, and that a criminal conviction is not an element of punitive damages, asserting that Taylor focused on the defendant's conduct rather than any conviction. In support, Plaintiff relies on the Antony Declaration and the attached CHP Traffic Crash Report, which Plaintiff states documents the investigating officer's observations of impairment, field sobriety testing, Defendant's DUI arrest, a chemical blood draw, and the officer's conclusion that the collision was caused by Defendant's impaired driving and failure to stop. Alternatively, Plaintiff requests leave to amend to allege these additional facts drawn from the CHP report if the Court finds more detail necessary.

In reply, Defendant argues that the Opposition confirms the central defect in the Complaint, contending that the operative pleading uses conclusory section 3294 language without alleging the specific aggravating facts required to maintain a punitive damages claim. Defendant asserts that Plaintiff's alternative request for leave to amend is telling because it concedes the present Complaint does not itself plead the CHP report facts—the officer's observations, failed field sobriety tests, arrest, and blood draw—on which Plaintiff now relies. Defendant argues that Dawes, Taylor, and Peterson do not support the current pleading, contending that Dawes held allegations of intoxication combined with a traffic violation are insufficient "without more," and that Taylor and Peterson involved extensive patterns of aggravated or reckless conduct not present here. Defendant maintains that the Complaint amounts to ordinary motor-vehicle misconduct coupled with conclusory punitive-damages labels and requests that the punitive damages allegations and prayer be stricken. Defendant adds that, if the Court is inclined to permit amendment, any amendment should be limited to specific, nonconclusory facts establishing malice, oppression, or fraud under Civil Code section 3294.

The Court finds the Complaint fails to allege sufficient facts to support the punitive damages claim. The Complaint only alleges that Defendant was driving while intoxicated, which alleged alone is insufficient to support a punitive damages claim. (Compl., ¶¶ 8, 11-24; Dawes, supra, 111 Cal.App.3d 82, 90; see also Taylor v. Superior Ct. (1979) 24 Cal.3d 890, 895-896 ["In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he wilfully [sic] and deliberately failed to avoid those consequences. [Citations.]."].) Here, the Complaint fails to allege specific facts from which the conscious disregard of probable injury to others may reasonably be inferred. Moreover, the drunk driving evidence Plaintiff cites in the Opposition is not alleged in the Complaint and therefore does not save the Complaint from demurrer. (See Opp., 3:1-14; Antony Decl., Ex. A; Code Civ. Proc., § 437, subd. (a) ["The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice"]; CPF Agency Corp. v. R&S Towing (2005) 132 Cal.App.4th 1014, 1032 ["our review disregards facts extrinsic to his pleadings"].) However, Plaintiff has indicated that additional facts can be alleged to support the claim for punitive damages.

Based on the foregoing, the Court GRANTS the Motion with leave to amend.

As noted above, Defendant failed to comply with Rule 3.1322, subdivision (a), of the California Rules of Court, and the Court finds the portions of the Complaint that Defendant seeks to strike identified in Defendant's memorandum of points and authorities somewhat confusing. (See Motion, 5:12-19.) First, there is nothing on the caption page of the Complaint that contains the words "Punitive Damages." (See Compl., p. 1.) Second, Defendant states "Punitive and exemplary damages: - Page 4-5, paragraphs 12 & 13 (the entire section under 'PUNITIVE DAMAGE ALLEGATIONS')," which itself is confusing. It appears that Defendant seeks to strike the entire section on "PUNITIVE DAMAGE ALLEGATIONS", but does not refer to paragraph 24 of the punitive damages allegations on page six of the Complaint. (See Motion, 5:13-14.) Third, page 6, line 10, in the prayer for relief requests "special damages," not "punitive damages." (Compl., p. 6, ln. 10.) The Court infers that Defendant meant line 11 on page 6 of the Complaint, which specifically requests punitive damages. (Compl., p. 6, ln. 11.) Despite these inadequacies, the Court will STRIKE the following portions of the Complaint with leave to amend:

1. Page 4, line 6 through Page 6, line 5, including paragraphs 12 through 24, in their entirety; and
2. Prayer for Relief, paragraph 3 on Page 6, line 11, "3. For punitive damages according to proof at the time of trial".

CONCLUSION

The Court GRANTS Defendant Mehar Singh Badesha's Motion to Strike Portions of Complaint and hereby STRIKES the following portions of the Complaint with 20 days' leave to amend:

1. Page 4, line 6 through Page 6, line 5, including paragraphs 12 through 24, in their entirety; and
2. Prayer for Relief, paragraph 3 on Page 6, line 11, "3. For punitive damages according to proof at the time of trial".

Defendant is ordered to give notice of the Court's ruling within five calendar days of this order.